

1084, 1095. However, the court may also consider the attorney's skill and expertise, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632. A plaintiff seeking to recover hourly rates for out-of-town counsel that are higher than the local rates must show (1) a good faith effort to find local counsel, and (2) demonstrate that hiring local counsel was impracticable. *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243.

Here, Plaintiff's counsel seeks approval \$500 for both attorneys who billed to this matter. Counsel's declarations provide details on each attorney's education and experience. However, no evidence has been presented that a good faith effort to find local counsel was made, or to demonstrate that hiring local counsel was impracticable. Further, no evidence has been presented that a comparable, smaller-market court like Shasta has approved the rates sought. For those reasons, the Court exercises its discretion to approve the rate of \$400 per hour, which is at the high end of prevailing rates charged by attorneys of similar skill and experience in this community.

Multiplier: The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased. Such an adjustment is commonly referred to as a "fee enhancement" or "multiplier." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).) The trial court is neither foreclosed from, nor required to, award a multiplier. ... The Supreme Court has "set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: '(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award.'" *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247-248.

Here, the Court declines to adjust the lodestar with a multiplier. This is a straightforward lemon law action which settled at mediation early in the case. No discovery or motion practice were undertaken. While the Court acknowledges the attorneys' skill and experience in this practice area, the case did not present novel and difficult questions or unusual skill in presentation. The nature of the litigation was within counsels' standard practice and did not preclude other employment. Finally, the contingent risk and delay in payment are standard in lemon law actions, and the delay was not unusually long or unexpected.

Costs and Expenses: The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). Plaintiff has filed a memorandum of costs. GM does not object to any costs. Total costs are \$1,327.51. Costs appear reasonably incurred and will be awarded.

The motion for attorney fees and costs is **GRANTED** in the total amount of \$23,447.51 (consisting of \$18,800 Zazzi + \$1,320 Fleckenstein + \$2,000 anticipated fees for this attorney fee motion + \$1,327.51 costs). A proposed order has been lodged and will be modified.

IN RE: COYLE

CASE NUMBER: 26CV-0210598

Tentative Ruling on Petition for Change of Name: Petitioner Caroline Louise Coyle seeks to change her name to Caroline Louise Martin. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.